



Legal mechanisms to protect the right to privacy from the risks of digital transformation

Protection guarantees and enabling controls

Mehenni Ouarda

University Mohamed lamine debaghine - setif 2-Algeria

o.mehenni@univ-setif2.dz

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Abstract

The research paper attempted to study the impact of digital transformation strategies in light of information technological progress, which has posed a great threat to the right of individuals to exercise their right to private life. The study has identified the most important legal mechanisms and guarantees necessary to protect people's digital privacy, with controls to enable this right. Constitutionally enshrined, recognized and legally protected, these controls relate to the case of exceptional circumstances and achieving public order within the framework of protecting the public interest.

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1. Introduction

Despite the ink spilled on the question of the sanctity of privacy and its protection, and even if privacy is considered a constitutional right inherent to the natural person in his capacity as a human being as a public good, it is considered the foundation of the structure of any healthy society, and is considered one of the rights that precede the existence of the state itself. Societies, particularly democratic ones, therefore want to guarantee this right and consider it as an independent right in itself. They do not just enact laws to protect it, but rather seek to anchor it in people's minds, instilling noble values that play an important and effective role in preventing intruders from interfering in people's private lives. Others and reveal their secrets. This right has received attention, both from international organizations and institutions as well as from constitutions or the legal system.

However, the latter is one of the subjects in constant evolution and is therefore affected by all developments and at all levels, particularly in the era of digital transformation in cyberspace and official digital platforms developed as part of the implementation. work of government services, public administration services and the adoption of different devices with diverse tasks, which has raised serious concerns about the protection of data relating to individuals and their private protection, so that the secrets of the members of society have become visible and heard by all and that no one is his usual nature wherever he goes, he is watched, the matter does not end at the point of being photographed, but rather to the integration

of surveillance devices with information devices - the computer and the Internet - with the help of satellites, which further harms, threatens and violates the integrity of life private and privacy of individuals.

Based on the above, this research paper attempts to study the modern concept of privacy as a human right, the most important violations and threats it faces during the early technological era, in light of the inevitable digital strategy, and to study the most important legal guarantees established by the laws of the State that explicitly recognizes this right in its national constitutions, and the most important controls to enable the right to privacy in such a way as to ensure that its protection is a fundamental human right and the preservation of public order in digital societies, highlighting the position of the Algerian legislator on all this.

The Problem of The Study:

The issue of the subject revolves around a main question which is:

What are the mechanisms for protecting the right to privacy in the face of the risks of digital transformation and modern technological applications?

As part of the study of this subject, two sub-questions arise which each query attempts to answer:

1 - What is the content of the right to privacy in the digital environment, and how have national legal texts treated its new content in the context of its textual approval?

2 - What are the most important risks of digital transformation for the exercise of the right to privacy, and what are the most important mechanisms and guarantees established to protect it in a manner

compatible with the interest of the holder of the right? this right and the controls aimed at guaranteeing public order?

To answer this problem and these sub-questions, we adopted the division below:

First requirement: The cognitive construction of the right to privacy

First section: Content of the right to privacy:

Second section: definition of the right to private life as one of the human rights.

Third section: Legal recognition of the right to privacy.

Second requirement: The risks linked to the enjoyment of the right to privacy in the digital age and the guarantees and controls allowing it to be exercised.

Section One: Rationales for Empowerment for the Right to Privacy in the Digital Age

Second section: The risks associated with exercising the right to privacy in the digital age

Third section: Protection guarantees and controls to enable the right to privacy

In order to study the subject, we adopted the descriptive and analytical approaches by presenting a detailed conception of the right to privacy in accordance with the relevant legal texts and jurisprudential opinions, then by examining with analysis the guarantees contained in the legal texts related to the protection of this right and the mechanisms allowing it to be exercised .

First Request

The Cognitive Construction of The Right to Privacy

Rights and freedoms have a high normative social value, because they are related to them in their existence and non-

existence, and one of the most important rights is the right to privacy or the right to privacy, because it is one of the most important rights associated with the human being who, by his nature, possesses the secrets of his private life, and he can only enjoy these characteristics if he is left alone in a setting that preserves one's right to privacy in its various aspects, what is meant by privacy, what is the meaning of the human right to privacy, and is this right considered a fundamental human right?

First section: Guaranteed Right to Privacy

It is necessary to first study the concept of privacy, and then investigate to what extent it is considered a subject of human rights, which is the right to privacy, its definition and characteristics.

First: Definition of Privacy

The linguistic origin of the word "private life" comes from: "particularisa", "particularise", "particularly" and "private life or intimacy", so it is said that "a group of people" does this, meaning their "privileged" , and "he chose it" for such and such, that is to say "he chose it for such and such" with emphasis on the letter, and he "chose it for such and such" "selected", that is to say, he chose it to the exclusion of the others¹.

As for the definition of privacy in terminology, we find great difficulty in finding a unified, all-inclusive definition of the term privacy due to the different angle from which it is viewed, and this is related to the different specialization, background, customs and traditions prevailing, as well as the political system in the country, in addition to that the concept of privacy itself is a changing concept², as the constituent elements of privacy are characterized by their continuous dynamics; it expands in

¹ Al-Jawhari, Ismail BIN HAMMAD, Al-Sihah Taj Al-Lughah wa Sahih Al-Arabiya, edited by Ahmed Abdel Ghafour Al-Attar, 1st edition, Dar Al-Ilm Lil-Millain, Beirut, 1979, p.142.

²Rizq Salmoudi, et al., (The contemporary position of public international law rules on the right to privacy in the digital age), Arab American University Research Journal, Volume 3, Number 2, Arab American University, Palestine, 2017, p. 4.

each time period to include other elements that were not among its components in previous

Although there are definitions that vary from country to country, it can be said that privacy is an individual's ability to control the space and time related to sharing his private and confidential life with others, as it relates to everything that enters the field of introversion, privacy and refraining from sharing his private life with others, in a more precise sense it is the drawing of boundaries that regulate the ability of society to interfere in the life of the individual, which has four facets:³.

- Privacy of personal information means establishing rules that regulate all personal information and its circulation, such as a person's financial or health data.
- Bodily privacy means protecting people from physical interference, such as forcing them to take certain medications or undergo examinations that cause tooth decay, for example, without their consent.
- Telecommunications and communications privacy, which includes the confidentiality and security of correspondence such as electronic mail, telephone communications and other forms of communication.
- Spatial privacy: which refers to interference in the space occupied by humans, such as their home or workplace.

Second: II: The meaning of digital privacy

Digital privacy refers to the right of individuals to control their privacy and personal data on the Internet and to protect them from intrusion into their personal information and from abusive, illegal and unwanted use.

It is defined by some as: "The Protection of An Individuals Information that is used or created while using the internet on computer or personal device)).

According to the United Nations, personal data⁴ means any statement relating to an individual that the individual can recognize either directly or indirectly, by referring to the individual's social identification number, by taking all available communication accounts or monitoring the data to determine whether it can be recognized or not.

Third ;The Importance of Privacy

It has become easy to identify specific individuals amidst a huge amount of public digital data, as well as the ability to make decisions about people based on a huge amount of data, as companies and governments can monitor every conversation individuals have, every business transaction, and every conversation they have, which can pose a serious threat to individuals' private lives, groups or society in general, which may pose a serious threat to the private lives of individuals, groups or society in general, as generalization, discrimination and exclusion become easier, which also affects our perspective on our relationship with the state, society, community, individuals and the market, and as the institutions we rely on become very knowledgeable about the history of individuals and their movements⁵, Perhaps the biggest challenge to privacy lies in the fact that this right can be violated without the aggressor ever knowing it. When it comes to other rights, you know what is happening to you and you know who is violating them. In the same way, those who monitor people cannot be identified, and we do not have the ability to hold these actions accountable, so acts of surveillance that were practiced in the past in secrecy and caution because they violate the foundations of a democratic society, are now an automatic situation in various contexts and as a result of certain

³ Privacy from a human rights perspective, file:///C:/Users/LENOVO/Desktop, accessed, 19/02/2024.

⁴ <file:///C:/Users/LENOVO/Desktop> , accessed 19/03/2025.

⁵ Privacy from a human rights perspective,op;cit.

imperatives, modern . Therefore, digital privacy has an important role in protecting basic human rights, the most important aspects of this privacy can be mentioned as follows⁶:

-Protecting personal data.

Ensuring the personal security of individuals from any threats, blackmail or electronic danger.

Ensuring control of digital identity and how data is shared and used

Raising the level of trust between individuals, especially in the field of commercial transactions and the digital economy.

Second section: Definition of the right to privacy as one of the human rights

In defining the right to privacy, it is necessary to approach the jurisprudential definition rather than the textual definition.

First: The jurisprudential definition of the right to privacy:

the jurisprudential definition of this right differs between jurists and writers, and two trends have emerged, one which broadens the scope of this right and another trend which narrows it and the restricted⁷, we will therefore approach the definition of the right to privacy according to the following:

1- The broad definition of the right to privacy: Proponents of this definition have tended to broaden it with the aim of protecting the right of the individual to confront the State in order to set limits to the State for confront this right, among the

definitions mentioned, the definition of Padenter which says: "that everything which has no relation to public life, that is to say everything which is not considered as part of public life"⁸

American jurisprudence has defined it as: the right to solitude, that is to say the right of a person to a quiet material life, or to be left without disturbance or worry⁹.

The American Law Institute also defined the right to privacy as follows: "Any person who seriously and unlawfully violates the right of another person to have his or her affairs and circumstances not known to others and ensuring that his image is not exposed to the public eye, is considered responsible towards the victim"¹⁰.

The Stockholm Conference of Jurists in 1967 defined it as "the right of the individual to be free with a minimum of external interference"¹¹. It seems that these definitions are so broad that it is difficult to understand the content of the right to privacy.

2: The narrow Definition of The Right to Privacy:

Some jurists have linked the right to privacy to the idea of calm, tranquility or solitude, all of which are synonyms that indicate the same meaning of the individual's right to live their life, even partially, at home. distance from society, with the least interference from others. American Judge Cooley defined this as: "the right of the individual to be left alone"¹².

⁶ Roaa Al-Attiyah, "Legal Challenges in Protecting Digital Privacy in the Iraqi Civil Code", Al-Anbar University Journal of Legal and Political Sciences, Issue 1, Volume 15, August 2025, p. 367.

⁷SHAKER Jamil Sajet, The Right to Privacy as a Human Right, research submitted to Al-Namaa Center for Human Rights, Iraq, 2016, p.28

⁸ Grebonval Alice, protection of privacy, doctoral school, University of Life II, 2001/2002, p.13

⁹Ismahane Benmalek, Legal Guarantees for the Right to Privacy During the Investigation Phase, Al-Ustad Al-Baheth Journal of Legal and Political Studies, Volume 2, Number 9, Faculty of Law and Political Science, Mohamed University Boudiaf, M'sila, 2018, p.1023, Dr.

¹⁰Mustafa Ahmed - The private life and responsibility of the journalist - Dar Al-Fikr Al-Arabi - Cairo - 2001, p.30

¹¹Shaker Jamil Sajet, previous reference, p. 4, taken from the United Nations website, StockholmConference, <https://www.un.org/ar/conferences/environment/stockholm1972>, access date: 10/5/2025.

¹²This definition was applied in California in the Kirby Studios case in 1942, where the rationale for the decision was as follows: The right of the individual to live his life in isolation from others, without exposure to broadcast unwanted or unjustified information or data. about her. See marginalization n°5, Salim Jalad, The right to privacy between guarantees and controls in

Some American jurists have defined it as follows: "The right to privacy is the right of a person to demand that others leave him alone without anyone disturbing his private life»¹³

As for French jurisprudence, it has defined it in a way that is not very far from American jurisprudence. The jurist Carbonier defined it as "the right of a person to the private sphere of his life in order to be able to live apart from others". Respect the natural privacy of the individual and the right to live in peace", as Professor Caban defined it being "the right of every person to live in peace and tranquility"¹⁴.

3: The Emerging Meaning of the Right to Privacy

Faced with new means which constitute a new threat to the right to privacy, certain definitions have taken on a meaning which focuses on new aspects. The Center for Community Policy Studies presented a new definition saying: "The ability of a person to act lawfully without disclosing that behavior or being held responsible for it", in this context it is a social license that excludes a group of actions, including ideas or expressions, from societal, public, or governmental control.

This definition attempted to remove privacy from the concept of government surveillance, as it is consistent with the state's focus and ability to surveil individuals and pursue their actions through all forms of physical and virtual violations, a important element closely related to privacy, which is the legal framework and legal protection of privacy.

Based on the trend of privacy in its new face, we find the definition issued by the center for community data studies¹⁵, which attributes the right to privacy to the ability of the individual to act legally without no obstacle prevents this behavior. Thus, the deeper meaning of the concept of privacy is evident in adopting this license of freedom of action and guaranteeing non-interference or liability of others under any circumstances, and here we discover the addition made by this definition by fencing off privacy against any violation issued by individuals or even the state within the framework of what is called modern electronic censorship.

Second: Legal Definition of The Right to Privacy:

Some state laws went to enumerate the elements of private life and its images or vice versa, such as the text of Article 652 of the Second Code of Torts in American law, which defined the various images that represent unreasonable interference with the solitude of others, disclosure of the private life of others and false representation of others, and the second and third articles of paragraph B of Recommendation No. 428 issued by the Consultative Assembly of the Council of Europe in 1970, which emphasized that the right to privacy includes the ability of the individual to direct his life as he wishes with the least amount of interference It includes family life, intra-family life, physical and moral bonding, honor and reputation, and its infringement represents any form of distortion of a false image of others, unauthorized publication of private photographs, protection against unjustified

Algerian legislation and Islamic jurisprudence, a memorandum for obtaining a master's degree in Sharia and law, Faculty of Islamic sciences and human civilization , Faculty of Islamic Sciences. Human Sciences and Civilizations, University of Oran, 2013, footnote 5, p.14. 5

¹³Shaker Jamil Sajet, op. cit., p. 4⁶

¹⁴Dr Mahmoud Abdel Rahman, The scope of the right to privacy, Dar Al-Nahda, Cairo, 1994, p.123

¹⁵Rizk Salmoudi and others, op. cit., pp. 04, 05

and unacceptable espionage and intrusion, protection against the misuse of private communications, and persons who have taken a course of conduct that would encourage others to reveal the privacy of their lives do not benefit from legal protection, as they cannot complain about the infringement of their private lives¹⁶.

As for Arab legislation, although it explicitly guarantees this right, it does not define it in the same way as Egyptian, Syrian and Jordanian laws.

Third section: Legal Recognition of The Right to Privacy

We find in the laws of almost all countries articles that recognize privacy and recognize it as a fundamental right, guaranteeing at a minimum the confidentiality of residence and correspondence. However, recently written constitutions in countries like South Africa or Hungary have established special articles related to the confidentiality of personal data and access or control over it, but many older constitutions, like those of the United States of America and India do not include explicit articles on this subject, but courts and jurists have found references to it in other articles of the law.

Additionally, many countries have sought in recent decades to craft their laws in accordance with the international privacy treaties and conventions they have signed and are bound by, such as the International bill of fundamental civil rights man, and in the 70s of the last century, many countries began to establish legislation aimed at protecting the privacy of individuals and establishing a framework for this purpose, relying mainly on the framework presented by the Organization of economic

cooperation and development in Europe in 1990¹⁷.

In this context, the European Union has a clear policy regarding the protection of the data of European citizens towards companies that collect or have access to this data. In May 2018, new legislation was published that regulates the relationship between companies and the citizen and guarantees a set of data, rights for him, including his right to know the data they collect. The companies own it, and it has the right to be forgotten (i.e. to delete its entire file without returning it), and huge financial fines are imposed on the companies, in case of non-compliance and violations.

The constitutions of more than 130 countries contain provisions relating to the recognition and protection of privacy in all regions of the world. The right to privacy is the most important element of privacy, and more than a hundred countries have data protection legislation. despite this, censorship is imposed on citizens without respect for these laws¹⁸. Examples of legislation that includes recognition and protection of this right include: **United States of America**: Certain federal laws, including the Health Insurance Act, the Accountability Act (1966), which includes a health data provision, and the Children's Online Privacy Protection Act, apply to websites that collect data from children under the age of thirteen and some states have stricter privacy laws, including the California Privacy Protection Act, which is the first law in the United States that requires websites, even if they are outside the state and as long as they are used by its

¹⁶Al-Dhahabi Khadouja, The right to privacy in the face of electronic attacks (a comparative study), Al-Bahith Journal for Legal and Political Studies, volume one, number eight, 2017, p.143

¹⁷The Organization for Economic Co-operation and Development is an international organization aimed at economic development and the revitalization of trade.

The organization consists of a group of developed countries that accept the principles of representative democracy and a free market economy

¹⁸The Organization for Economic Co-operation and Development is an international organization aimed at economic development and the revitalization of trade,op ;cit.

citizens, to establish privacy principles and policies. This policy must include:

The type of personal data collected - With which third parties the data is shared - How the user can view and modify their collected data - How users are informed of changes to the privacy policy - The effective date of the policy.

2- **Canada:** The Electronic Information and Data Protection Act stipulates how information is collected, stored and used in Canada in the context of commercial activities, where companies must make their privacy policy accessible to users and customers, and Canada has a privacy commissioner who enforces the law.

3- **Denmark:** Denmark passed the Personal Data Processing Act in 2000. The Data Protection Agency is responsible for overseeing the enforcement of privacy laws. It has the power to issue a warning or ban against personal data abusers only if the person consents, and no company can share information with a third party for marketing purposes without the person's knowledge and consent.

In general, countries are divided into two categories in their recognition of the right to privacy:

1- The countries that reject the idea of the right to privacy, such as the English, Italian, Australian and American (old) legislation, have found the justifications for their rejection in the lack of clarity of the idea of privacy, as recognizing this right will increase the number of cases and lawsuits, then the path of the claim will only be taken by those who are able to afford it without the poor class, in addition to ignorance of the outcome of the case. Those who were able to afford it without the poor class, in addition to the ignorance of the outcome of the case, in addition to

the fact that the idea of privacy is no longer as valuable as it used to be, but has been overtaken by the developments in societies from the imperatives of intrusion and the necessities of control within reasonable limits.¹⁹

Despite these justifications which have been given, notably in thought, jurisprudence and English law, this does not mean that there is no form of recognition and protection in the event of an invasion of the private life of individuals, because many notions of invasion of privacy are legally adopted and criminalized, such as the notion of defamation, violating the sanctity of others, and violating the sanctity of their property, as this is considered a breach of trust.

2- Countries in favor of the explicit recognition of the right to privacy:

Unlike previous legislation, other countries have not hesitated to explicitly recognize the right to privacy independently and to consider it as an existing right and independent, as is the case for France, where the legislator considered it as an independent right in 1970²⁰, and this position was followed and supported by French justice, which constructed an edifice of rules protecting the right to privacy. Likewise, American law has changed its focus from rejection to support, as was previously mentioned above.

As for the position of the Algerian constitutional founder, he tended towards implicit recognition of this right in the 1963 Constitution, which stipulated some of its forms, through the text of Article 14, which stipulates the inviolability of the invasion of the home and the inadmissibility of revealing the confidentiality of correspondence²¹, and the constitutional ratification of the Universal Declaration of

¹⁹Salim Jallad, op cit, p. 29

²⁰Ibid, p. 30, extract from "The right to respect for private life was enshrined in article 22 of the law of July 17, 1970, Nathalie; Mallette Poujol, Protection of privacy and personal donation, University of Montpellier, Lega Media, 2004, p.4.

²¹Constitution of the Democratic Republic of Algeria 1963.

<https://www.el-mouradia.dz/assets/texts/constitution/1963.pdf>

Human Rights, which explicitly recognizes this right, implicitly recognizes it.

As for the 1976 Constitution, it explicitly recognized this right in Article 49²², then the 1989 Constitution expanded the concept of privacy and explicitly recognized its guarantee in the text of Article 37, both paragraphs, and the 1996 constitutional amendment came in accordance with the text of Article 37, changing only its numbering, as Article 39/1 stipulates that the inviolability of the private life of the individual citizen, along with the inviolability of his honor, and the law seeks to protect it and guarantee the confidentiality of private correspondence and communications in all its forms²³.

As for the 2016 amendment to the Constitution, it affirmed that the inviolability of a citizen's private life and honor, the confidentiality of his private correspondence and communications, which are legally guaranteed, may not be violated, except in connection with a reasoned order from the judicial authority, and the law shall apply the prescribed penalties in case of violation of this order. The law shall apply the prescribed penalties in case of violation of this order, while ensuring the protection of natural persons in the field of processing personal data, and the constitutional founder considered this right a fundamental right guaranteed by the law and penalized for its violation, according to the text of Article 46 of the Constitution.²⁴

As for the 2020 constitutional amendment, according to the text of Article 47, it

acknowledges that everyone has the right to his private life and the right to protect his honor, and in the same context, it also stipulates the right to the confidentiality of his personal correspondence and communications.

The same article also emphasized in the third paragraph that the rights mentioned in the previous two paragraphs may not be violated without a reasoned order from the judicial authority. The protection of persons when processing personal data is a fundamental right. The law penalizes any violation of these rights²⁵.

It is worth noting that the founder of the constitution did not define the right to the sanctity of private life and only listed what can be protected against actual encroachment on the sanctity of people's private lives. Perhaps the reason is a restriction, this right falls within the scope of the protection applied to it. Furthermore, these articles were consistent with previous expanded definitions in that they cannot limit the status of the right to privacy despite its reference to the most important things that fall within its scope, such as the right to the protection of life, family, correspondence, etc., and the proof of this is the lack of agreement to control them in a unified way, which indicates that the idea of privacy is a flexible and narrow, linked to the general system of each country, to its religious and social values and to its political system.

On the other hand, it can be said that the inclusion of the constitutional basis of the

²² Constitution of the Algerian Republic for Popular Democracy 1976.

<https://www.el-mouradia.dz/assets/texts/constitution/1976.pdf>

²³ Presidential Decree n°. 96/438 of 26 Rajab 1417 corresponding to December 7, 1996, publishing an amendment to the constitution approved during the referendum of November 28, 1996, in the Official Journal of the Algerian Democratic and Popular Republic. RO 76, issued on 27 Rajab 1417 AH corresponding to December 8, 1996 AD. Amended and Completed.

²⁴ Law 16-01 setting forth the constitutional amendment dated 26 Joumada al-Awwal 1437, corresponding to March 6, 2016, article 14, dated 27 Joumada al-Awwal 1437 corresponding to March 7, 2016.

²⁵ Presidential Decree n°. 20-442 of 15 Joumada al-Ula 1442 corresponding to December 30, 2020, setting forth to the promulgation of the constitutional amendment, approved by referendum on November 1, 2020, Official Journal of the Algerian Republic, n°. 82, published on December 30, 2020.

right to privacy at the heart of its articles leads to the following important results:

-The inviolability of citizens' privacy, honor, and correspondence cannot be violated by law.

-Giving individuals and groups, through associations with different purposes, the right to resort to the judiciary to demand the protection of this right and to activate its enshrinement and protection on the ground, especially in light of the digital environment.

- Legal texts should establish penalties for any violations related to this right and any attack on an individual's private life in its physical or moral form.

- The need for individuals to exercise all their freedoms within the framework of the necessary respect for the recognized rights of others, especially their rights related to honor and privacy.

- Protecting the inviolability of the family home and the inability to search it except with a warrant issued by the competent judicial authorities and within the limits of the law and the required respect for its privacy, which requires protecting it from any infringement by the executive authority or private parties, except in cases that require the protection of the public interest, such as the possibility of waiving the inviolability of the home for the need to combat crime and justice or research for the requirements of research, investigation, and investigation.²⁶

-The right to privacy is considered a fundamental right enforceable against legislative and executive authorities.

The second requirement:

The risks linked to the enjoyment of the right to privacy in the digital age and the guarantees and controls to exercise it

Studying this topic requires first examining the justifications for allowing the right to privacy in the digital age, then studying the risks associated with exercising this right in the digital age, and finally study the adequacy of safeguards for the exercise of controls to enable the right to privacy in the digital age.

First section: Justifications For Enabling The Right to Privacy in The Digital Age

With the rise of modern technologies, risks to the right to privacy have increased, as the individual has become more limited in their relationships in accessing, storing and processing their personal data through means of information such as surveillance or espionage techniques, and the exploitation of individuals' private data, all of which pose a direct threat to privacy in its new form, especially if exploited for purposes beyond the control of the individual. Their owner and without their knowledge. The most important justifications for strengthening this right in the modern era can be summarized as follows:

First: The imperative to open up to the Internet²⁷

The digital transformation in the national and international arena has imposed the existence of information banks as a result of the huge amount of information and personal data, and this emergence was accompanied by the so-called information crime, which began to spread more sharply with the spread of the Internet²⁸, and the flow of information and communications across borders without any consideration of geographical or political boundaries, and the exchange of individuals with their data to different parties, perhaps these parties were not addressed, which leads to the emergence of great risks and threats

²⁶Article 48 ,ibid.

²⁷Al-DAHBI Khadouja, op ;cit, p.144

²⁸SUZAN Adnan Al-Ustaz, (Violation of The Sanctity of Privacy via The Internet), Journal of Economics and

Legal Sciences of The University of Damascus, volume 29, number 3, Faculty of Law, University of Damascus, 2013, p. 432

resulting from the misuse of this data, especially in countries where legal protection of personal data is not available.

Second: The distinctive nature of electronic transactions²⁹

In a sense, these transactions are characterized by a virtual nature that lacks physicality, which requires a greater degree of concealment of activities and data than is the case in the physical reality, but the reality proves the opposite, considering that electronic transactions leave traces and indications of the individual's access to sites, the people he dealt with, the data he requested, and the forms of digital records related to the information and things he searched for, making him vulnerable to hacking and unwanted and illegal exploitation of them.

Third: Changing parameters and scope of centralization and centralization techniques³⁰.

The right to privacy in the digital world is unique from other rights, as the adoption of an effective law that sets the parameters of an integrated strategy to protect this right away from the digital environment enables the state to control various violations and abuses, but it will not be as easy when it comes to protecting the right to information privacy because it is directly linked to a vast virtual world that is linked to the infinite Internet network, and here the struggle for control over the Internet intensifies through the difficulty in controlling the centralization of transactions and data, which expands the circle of violation of the right of individuals and makes it difficult to protect against any violations of the right to privacy.

Second section: Risks of exercising the right to privacy in the digital environment

The personal life of individuals in its new form, represented by information banks linked to technology, is threatened by numerous violations and attacks, especially with the emergence of the Internet and the rapid way of transferring information there, and therefore the ease of compromising the personal lives of individuals by violating the sanctity of personal life, and this can be summarized in two aspects:

First: The attack on privacy in the age of digital transformation and modern technology

The forms of violation of digital privacy can be summarized as follows:

1- Offenses related to the violation of the confidentiality of personal data

Personal data or data of a personal nature, as stipulated in Article 3 / first paragraph of Law 18/07, means any information related to any person, whether the latter is known or identifiable, directly or indirectly, and in particular can be identified by reference to an identification number or an element or several elements of his physical, physiological, genetic, biometric, psychological, cultural, social or economic identity.

In the same context, Article 3(2) considers every natural person to be an individual whose personal data is the subject of processing.³¹

There are many forms and manifestations of breaches of the confidentiality of the personal data of individuals, through the unlawful processing of data and personal data, where specific processing rules are followed in accordance with applicable laws, such as not granting or revoking a license by legally competent authorities, or this may take the form of unlawful disclosure. For personal data and information of individuals, this is what is

²⁹Al-DAHBI Khadouja, op ;cit, p.144

³⁰Ibid.

³¹Law 18/07 of 25 Ramadan 1439 corresponding to July 10, 2018, which includes the protection of individuals in the field of processing of personal data, article 34.

stipulated in public labor laws in general, and this is considered a serious error that exposes its author to criminal prosecution and disciplinary liability.

2- The Crime of Electronic Espionage:

Electronic espionage is one of the most dangerous forms of attack on individuals' personal data and is defined as "the process of eavesdropping or capturing data transmitted remotely between two devices via the Internet"³². In this context, security researchers discovered messages sent to a Bahraini activist that revealed that a piece of software known as **Find Spy**³³ that 25 countries use to spy on their citizens, including Bahrain, Ethiopia, Malaysia, Mexico, Egypt and Qatar. This program takes screenshots of targeted computers and records text conversations or audio and video conversations conducted by Instant Access programs, such as Skype, to control hacked devices and copy their contents.

3- Automated Account Hacking Crimes:

The crime of computer hacking means that it is the "process of unauthorized entry into the computer of another using advanced programs of high technology and expertise".³⁴ Therefore, computer hacking is an attack on privacy and confidentiality of transactions, using and exploiting them for various illegal purposes that cause the individual a number of losses on a material and moral level, and that has expressed itself in recent years through so-called "black hacking" or "black hat hackers", which is a group of electronic criminals who have adopted the method of entering the personal computers of individuals by illegally penetrating in information systems and databases by modifying, distorting and destroying.

data with the aim of obtaining a financial advantage or destroying them and causing moral harm to the victim³⁵.

Third section: Protection Guarantees and Controls to Enable The Right to Privacy

These risks have raised and raise the issue of legal protection in addition to technical protection of personal data, and one of the main factors for the need to ensure legislative protection and enact laws in this area before the In the digital age, the legislative protection of the personal lives of individuals was governed by criminal texts. Despite this, these texts only covered one aspect of personal rights apart from the dangers associated with the collection, storage and access to digital electronic information, which prompted many countries to establish administrative, civil and criminal laws, legal rules that have been described as secret legislation³⁶. That do not protect against simple physical actions that affect the private lives of individuals.

First: Safeguards to Protect The Right to Privacy

When we extrapolate numerous punitive legislative texts in the field of the fight against violations of the right to privacy, we see that a set of legislations has worked on the adoption of special texts to ensure the protection of this right in outside of punitive texts in terms of general rules, while others have contented themselves with modifying punitive legislation to make it consistent with the fight against computer crimes⁴ committed via the Internet in general and the right to privacy in particular. For example, French legislation has sought to modify the crimes of violation of privacy in the field of information after having promulgated a set

³² Article 3 of the 2001 setting forth Convention on Combating Cybercrime.

³³ Hardo Center for Supporting Digital Expression, Violation of digital privacy in the press, professionalism of journalism and personal life, Cairo, 2017, p. 8

³⁴ Al-DAHBI Khadouja, op ;cit, p.148

³⁵ Ibid.

³⁶ Mustafa Musa, Risks Threatening the Right to Privacy Through Digital Electronic Technologies, Kuwait International Law College Journal, p. 450

of legislations which it adopted in the field of automated data processing systems. information, Law n° 19-88 of 05/01/88 setting forth to information fraud offenses³⁷.

The legislator wanted, in both laws, to provide appropriate solutions to deal with crimes arising from electronic computers and their danger to private and free, public and individual life, the legislator criminalizes acts that violate the right to sanctity of private life. under the heading of invasion of personal life, we find a pioneering step in the field of privacy protection by providing preventive protection mechanisms aimed at preventing violations of the right, in addition to restorative protection, including the more important is the protection of victims according to compensation claims. As for the position of the Algerian legislator, the Algerian legislator, like other comparative legislations, has worked to recognize the right to privacy in general as a constitutional principle through the text of article 47 above.

He also established the principle of criminal protection in the text of article 303 bis of the Penal Code, which stipulates that anyone who intentionally violates the sanctity of private life by any means whatsoever will be punished with imprisonment of a duration of 6 months to 3 years:

- Capture, record or transcribe private or confidential calls or conversations without the owner's permission or consent.
- Take, record or transmit the image of a person in a private place without the authorization or consent of its owner. This text is considered to carry flexible protection guarantees which extend to any nature of the right to privacy or speech,

including the use of the expression “any technology”.

The legislature also criminalizes the process of collecting, providing, publishing or exchanging stored data, or disclosing or using for any purpose, any data obtained from the crimes stipulated in this article. The legislator has also provided for criminal protection of the right to privacy in accordance with article 4 of law 04-09 relating to the rules for the prevention of crimes linked to information and communication technologies³⁸, in order to guarantee that the privacy of individuals is not harmed in the event that the competent authorities carry out surveillance operations of all electronic communications with the aim of preventing acts classified as crimes of terrorism, sabotage or crimes affecting state security. We find Law 18-07 relating to all the principles and obligations which must be respected and adhered to during the process of collection, processing and conservation of personal data, the rules for the use of this data and the rights of persons whose data has been collected by adopting the international rules applicable in this area³⁹, and these are represented in the principles:

1- Informed Consent and Data Quality:

Article 7 thereof stipulates the express consent of the data subject in order to allow the processing of their personal data, and if it is incomplete or incapable, the consent is subject to the rules of public Law. As for data relating to children, according to article 8 of the law, its processing is subject to the agreement of their legal representative or to authorization from the competent judge when this is necessary. The legislator has stipulated that the processing is legitimate, fair, intended for

³⁷Al-DAHBI Khadouja, op ;cit, p.152

³⁸Law n° 09-04 of 08/05/2009 setting forth down rules for the prevention and fight against crimes linked to information and communication technologies, n° 47 of 08/16/20.

³⁹Law 18/07 of 25 Ramadan 1439 corresponding to July 10, 2018, which includes the protection of individuals in the field of processing of personal data, article 34.

specific purposes, not exaggerated, and that it is correct, current and complete.

2- Pre-processing procedures:

The law requires obtaining a license or permit from the authority for any processing of personal data:

a - **Declaration:** A defect must be filed by declaration in accordance with the provisions of this law with the national authority in exchange for obtaining a receipt within a maximum period of 48 hours. The data controller may, upon receipt of the receipt and under his responsibility, proceed with his work. The receipt includes numerous information such as the name and address of the official, the nature of the data, the recipients of the data, the duration of storage, and others, since the same law specifies the cases which are not subject to the mandatory declaration⁴⁰.

b - **License:** The National Authority for the Protection of Personal Data transmits the request which is subject to compulsory prior authorization. It notes that the processing involves apparent dangers for the respect and protection of private life, by a reasoned decision which is communicated to the National Authority for the Protection of Personal Data, responsible for the processing within 10 days from the date authorization, and it is not possible to authorize the processing of the data.

Sensitive unless the public interest requires it, and in other cases exclusively specified in the text of article 20 of law 18-07⁴¹.

As for dissuasive measures, Law 18-07 included in its sixth part a total of administrative and penal provisions grouped into 29 articles divided into two chapters: in terms of administrative procedures (warning, excuses, fine and withdrawal of license) for the person responsible for processing who violates the provisions of Law⁴², On the other hand,

criminal procedures are included in 20 articles⁴³, which specify the criminal acts and the penalties due.

Second: Controls to Ensure The Right to Privacy in The Digital World.

Like the rest of human rights stipulated in international conventions and national legal texts, the right to privacy is exercised under certain controls and is subject to a set of restrictions which are considered an exception to the right to privacy. Privacy which is not absolute, because this leads to the negation of the principle of organization. If an individual is left alone under the pretext of privacy, he may not care much about the realization of the public interest of individuals, society or the state organization as such, in its entirety. Therefore, the public interest necessitated the imposition of certain restrictions on an exceptional basis so as to achieve a balance between the private interest of individuals and the common interest of all members of society. Controls, in the context of this study, refer to cases in which part of an individual's private life may be revealed. These are controls that limit the exercise of rights and freedoms. They are linked to the public interest linked to the fundamental function of the individual, as in the case of exceptional circumstances, or they are linked to stability, to information, or it concerns the person himself, that is that is to say the satisfaction of the person concerned with their right.

1- In Exceptional Circumstances:

If the principle of legality is the origin and its respect is the fundamental rule in normal circumstances, then the State may find itself in exceptional circumstances which would constitute a danger or a serious threat to public order or the continuity of institutions and facilities of the State, and that in the face of this exceptional circumstance, the powers of the

⁴⁰Pursuant articles 13-14 of law 18-07

⁴¹Pursuant articles 17 - 21 of law 18-07.

⁴²Pursuant articles 46-47-48 of law 18-07.

⁴³Pursuant articles 54 - 74 of law 18-07.

administration extend and the principle diminishes in favor of the principle of opportunity, thus restricting the empowerment of freedoms in the interest of the preservation of public order and the public good of the State. The right to privacy, like other rights, is affected by this restriction, but within certain limits to the extent that it contributes to ensuring the proper functioning of state institutions and dealing with public order. One of the applications that illustrates the impact of exceptional circumstances on the exercise of the right to privacy is the text of Article 7 of Presidential Decree 91/196, which includes the report on the state of siege, by which the military authority vested with police powers was able to carry out day and night inspections in all public and private places and residences, which indicates that the state of siege restricts an aspect of the private lives of individuals, which constitutes an exception to the guarantees stipulated in the constitution, the penal code, and the code of criminal procedure, in addition to all the regulatory procedures and exceptional measures that the government and the military authority can take, which can affect modern forms of privacy, such as the recording of votes, the interception of correspondence, the disclosure of private data, and the hacking of individuals' electronic accounts and mail⁴⁴.

3- The Right to Information and Proof:

Among the matters that States consider to be a public right, an exception can be made to the exercise of the right to privacy:

The right to information and the right to proof to reveal the truth about the commission of crimes:

a - **The right to the media:** Media freedom is one of the most important

freedoms recognized by national constitutional texts and international conventions, as stipulated in the Universal Declaration of Human Rights of 1948 in article 19 and stipulated in article 42 of the universal declaration of human rights of 1948, Algerian constitutional amendment of 2016, one of the forms of freedom of expression is edge freedom, which is closely linked to the private lives of individuals in an inverse relationship to each other. French justice ⁴⁵ went to establish the link between freedom of expression and the inviolability of the private life of individuals, because the freedom to express opinions and to exchange ideas and judgments is a fundamental rule, it is international and constitutional and is not limited by any restriction, except in cases which involve an abuse of this freedom and which are provided for by law. The German Federal Constitutional Court considered that freedom of expression took priority over all other public rights linked to personality, in particular the right to honor and esteem⁴⁶.

Some case law believes that this conflict between the two rights exists to give priority to the public good of the public rather than the personal interest of the individual. As for the Algerian legislator, it should be noted that he did not provide for such exceptions, perhaps due to the inherent content of private life in the eyes of criminal law, but rather the text of article 303 bis 1 of Law 06/23, which includes the Penal Code, paragraph 2, criminalizes the act of a journalist linked to the private life of an individual in its various forms and includes it in category crimes⁴⁷.

The 2012 media law states⁴⁸ in article 93: **“It is prohibited to harm the privacy, honor and reputation of people, directly or indirectly.»**

⁴⁴Salim JALLAD, op. cit., p.128.

⁴⁵Cass.civ.2^{ème} 5, May 5, 1993, Bull.Civ.II, n°, 167, Pradel, procedural period, n°89-90, Atias, p.96.

⁴⁶Salim JALLAD, op. cit., p.

⁴⁷Law 06-23 of 12/22/2006, Official Journal n° 84, 12/24/2006, p.23

⁴⁸Organic Law n°. 12-05 of 18 Safar 1433 corresponding to January 12, 2012, setting forth to the media.

b - The right to evidence: There is also a conflict between the right to privacy and the right to evidence, since English law states that evidence must be considered if it is influential and strong, whatever it may be. the source, whatever the method of obtaining. and if it affects the private life of individuals, except that as a jurisprudential aspect, there is a difference between criminal evidence, which is linked to the protection of society, and the fight against delinquency, where all evidence must be considered, regardless of how it is obtained, and civil evidence, which is related to civil litigation based on privacy in a safe and civilized society, whose importance outweighs on the individual's interest in proving his claim in court.

Neither French nor Algerian law stipulated an absolute ban on recording as evidence before the judiciary, and the modern trend of the French judicial system differed in the extent of the legality of wiretapping private conversations,

as the modern judicial system gradually began to adopt wiretapping evidence if it was made with the authorization of the judicial authority and in accordance with the legal procedures applicable in the field of criminal evidence⁴⁹.

3 -Consent of the data subject:

That is to say the approval to act against it, and in the criminal field this means the orientation of the will towards the acceptance of the attack against an interest protected by law. The basic principle is that the consent of the victim

plays no role in the context of criminalization, because the law protects the interests of society. There are, however, exceptional cases in which the legislator has seen an effect in allowing the violation of the law, this consent is not a reason to authorize the attack except in exceptional cases where it was the will of the victim. It must be conscious, without coercion, deception or fraud. The Algerian legislator has followed the path of numerous legislations by adopting consent or not as two conditions for the offense of invasion of private life to occur or not, and the applications of this are provided for in the articles of the penal code and the code of criminal procedure, such as that stipulated in the 2016⁵⁰. penal code in the new article 303 bis.

Conclusion:

The right to privacy is considered one of the fundamental human rights enshrined in the constitutions of most countries and in most of their national legislative acts. In the age of technology, this right has acquired great and extreme importance due to the multiplicity of forms, models and images of abuse in the face of digitalization and its dangers of electronic espionage and hacking crimes. computer and intrusion into the electronic accounts and e-mails of individuals, in addition to the ease of access to electronic correspondence and transactions carried out by customers in the field of electronics. Although state legislation has attempted to establish legal rules and guarantees of

⁴⁹ Protecting the right to the inviolability of private conversations, comparative study on legislation against eavesdropping and the inviolability of private life, Dar AL-FIKR AL-ARABI, 1st edition, Cairo, 1998, p.154.

⁵⁰ Ordinance n°. 66-156 of June 8, 1966 setting forth the penal code amended and completed.

protection to resolve the practice of this right, it is still insufficient to

provide it with effective protection according to an integrated strategy that takes into account the interest of the individual in the world of digitalization, the higher interest of the State, public order and the common interest of individuals. We can imagine the most important pillars of protecting the right to privacy in the digital world according to the following propositions:

- Adopt normative and regulatory standards concerning technical services in general, Internet, cybercafés, electronic mail, e-commerce, e-banking, etc.
- Identify patterns of criminal behavior in the field of technology, such as crimes related to communication and information networks, and adopt appropriate deterrence and precautionary measures compatible with the national reality and the foundations of the legal system existing.
- Take legislative measures in the field of data, evidence, evidence and procedural rules proportionate to the nature of these offenses in normal and exceptional circumstances, without prejudice to constitutional rights, rules of procedural legality and the right to private life.
- Adopt security training strategies to prepare judges, lawyers and police for high-tech crimes for investigation, detection and proof.
- Prepare the appropriate administrative structure to lead technological institutions in the information age.
- Raise awareness among individuals and institutions of the importance of cooperation in order to detect security vulnerabilities, address them and not hide them, and build trust between individuals and security services in order to detect emerging criminal patterns.

List of Approved Sources and References:

Legal Texts:

First: The Constitutions

- 1- Constitution of the Algerian Democratic Republic of Algeria 1963.

<https://www.el-mouradia.dz/assets/texts/constitution/1963.pdf>

- 2- Constitution of the Algerian Democratic and Popular Republic 1976

<https://www.joradp.dz/HAR/Index.htm>

- 3- Constitution of the Algerian Democratic and Popular Republic 1996.

- 4- Law 16-01 setting forth to the constitutional amendment dated 26 Joumada al-Awwal 1437, corresponding to March 6, 2016, article 14, dated 27 Joumada al-Awwal 1437, corresponding to March 7, 2016.

- 5- Presidential Decree 20-442 of 15 Joumada al-Awwal 1442 corresponding to December 30, 2020, setting forth to the promulgation of the constitutional amendment, approved by referendum on November 1, 2020, Official Journal of the Algerian Republic, n° 82, issued on December 30, 2020.

Second: International Conventions Budapest Convention of 2001 setting forth to the fight against cybercrime.

Third: Legislative Texts.

- 1- Organic law n°12-05 of 18 Safar 1433 corresponding to January 12, 2012, setting forth to the media.

- 2- Law n°09-04 of 08/05/2009 laying down rules for the prevention and fight against crimes linked to information and communication technologies, n°47 of 08/16/20

- 3- Law 06-23 of 12/22/2006, Official Journal n° 84, 12/24/2006..

- 4- Law 18/07 of 25 Ramadan 1439 corresponding to July 10, 2018, which includes the protection of individuals in the field of processing of personal data, article 34

- 5- Order n°66-156 of June 8, 1966 setting forth penal code amended and completed.

Fourth: Books

- 1- Violation of digital privacy in the press, journalistic professionalism and personal life, Hardo Center for Supporting Digital Expression, Cairo, 2017.

- 2- AL-JAWHARI, Ismail bin Hammad, AL-SIHAH Taj AL-LUGHAH wa Sahih AL-ARABIYA, edited by AHMED Abdel

Ghafour AL-ATTAR, 1st edition, DAR AL-ILM Lil-MILLAIN, Beirut, 1979.

3- Mustafa Ahmed - Private life and responsibility of a journalist - DAR AL-FIKR AL-ARABI - Cairo - 2001, p. MAHMOUD Abdel Rahman, The scope of the right to privacy, DAR AL -NAHDA, Cairo, 1994.

4- Youssef CHEIKH Youssef, Protecting the right to the sanctity of private conversations, a comparative study on eavesdropping legislation and the sanctity of private life, DAR AL-FIKR AL-ARABI, 1st edition, Cairo, 1998.

Fifth: - Reviews

1- AL-DHAHABI Khadouja, The right to privacy in the face of electronic attacks (a comparative study), AL-BAHITH Journal for Legal and Political Studies, Volume One, Number Eight, 2017

2- RIZQ Salmoudi and others (The contemporary position of public international law rules on the right to privacy in the digital age), Arab American University Journal of Research, Volume 3, Number 2, Arab American University, Palestine, 2017 .

3- Suzan ADNAN AL-USTAZ, (Violation of the sanctity of privacy via the Internet), Journal of Economics and Legal Sciences of the University of Damascus, Volume 29, Number 3, Faculty of Law, University of Damascus, 2013

4- SHAKER Jamil Sajet, The right to privacy as a human right, research submitted to the AL-

NAMAA Center for Human Rights, Iraq, 2016.

5- MUSTAFA Musa, Risks threatening the right to privacy through digital electronic technologies, Kuwait International Law College Journal, number 10.

<https://journal.kilaw.edu.kw> Access date: 10/20/2023.

Sixth: thesis

Salim JALLAD, The right to privacy between guarantees and controls in Algerian legislation and Islamic jurisprudence, dissertation for obtaining a master's degree in SHARIA and LAW, Faculty of Islamic Sciences and Human Civilization, Faculty of Islamic Sciences and Civilization Human, University of Oran, 2013.

Seventh: Websites:

Privacy from a human rights perspective, file:///C:/Users/LENOVO/Desktop, accessed 19/01/2024.

Eighth:References in a Foreign Language

1-NATHALIE; MALLET POUJOL, Protection of privacy and personal donations, University of Montpellier, Lega Media, 2004.

2- Cass.civ.2^{eme}5, May 5, 1993, Bull.Civ.II, n° 167, Pradel, criminal procedure, n° 89-90 Atias.

3-GREBONVAL Alice, The Protection of Employee Privacy, Doctoral School, University of Life II, 2001/2000.